RATIO / CASE READING SHEET

Opinion No. 40/2021 (Viet Nam)

UN Working Group on Arbitrary Detention | A/HRC/WGAD/2021/40 | Viet Nam | 2021

Extractive reading sheet | local source passages; no model conclusions

Source excerpts are reading leads, not a case summary or established findings. Read the surrounding passages and identify the speaker before relying on them.

Presumption of innocence wording

[...] he right not to be arrested without prior authorization (art. 20), the right to presumption of innocence (art. 31 (1)), the right to a prompt, impartial and public trial for anyone charged with a criminal offence (art. 31 (2)), and the right to the assistance of a defence counsel (art. 31 (4)). 34. The source submits that Ms. Trang’s right to habeas [...]

Stored text line 242

Charge / offence wording

[...] warrant or any other decision by a public authority. Ms. Trang was subsequently charged with making, storing, distributing or disseminating information, documents and items against the State, under article 117 of the Criminal Code, which was adopted in 2015 and went into effect in 2018. The source notes that if convicted, Ms. Trang [...]

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Sentencing / detention wording

[...] by the People’s Court of Ho Chi Minh City. Since her arrest, Ms. Trang has been detained incommunicado and has had no access to a lawyer. 8. The source notes that prior to her current detention, Ms. Trang had been subjected to arrests, violent physical attacks and other acts of harassment by the authorities on numerous occasions. She [...]

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Source: https://www.ohchr.org/sites/default/files/2021-11/A_HRC_WGAD_2021_40_AdvanceEditedVersion.pdf

Source text SHA-256: 7f61a1109236d3b9 | Saved original available in the local case library